

An Act

ENROLLED HOUSE
BILL NO. 3800

By: Sneed of the House

and

Coleman of the Senate

An Act relating to roofing contractors; amending 59 O.S. 2021, Sections 1151.2, 1151.2a, as amended by Section 1, Chapter 368, O.S.L. 2025, 1151.3, 1151.4, 1151.5, as amended by Section 2, Chapter 368, O.S.L. 2025, 1151.7, 1151.8, 1151.9, 1151.10, as amended by Section 3, Chapter 368, O.S.L. 2025, 1151.11, 1151.12, 1151.14, 1151.15, as amended by Section 1, Chapter 200, O.S.L. 2025, 1151.17, 1151.18, as amended by Section 2, Chapter 200, O.S.L. 2025, 1151.22, and 1151.25 (59 O.S. Supp. 2025, Sections 1151.2a, 1151.5, 1151.10, 1151.15, and 1151.18), which relate to the Roofing Contractor Registration Act; modifying definitions; including residential roofers in certain provisions; modifying certain fines; removing certain language requiring Construction Industries Board from administering certain provisions; establishing certain action as violation of the Roofing Contractor Registration Act; allowing enforcement action to be taken on persons performing certain work in violation of certain provisions; prohibiting fines for certain work from exceeding certain amount; requiring roofing firms to have one qualifying party; increasing certain fine amount; removing certain fine amount and violation procedure; including endorsements in certain registration provisions; allowing certain persons to submit additional application information instead of obtaining a hearing; modifying certain registrations to be considered not in good standing; allowing certain registration or endorsement to be classified as not in good standing; removing certain suspension procedures for certain registrations; requiring certain endorsement information to be displayed in

certain situations; requiring certain contractor to be properly endorsed; requiring certain prime contractor to remain responsible for certain work; establishing certain subcontracting as a violation of the Roofing Contractor Registration Act; establishing certain action be considered delivered; providing certain exception to written contract when certain contractor subcontracts with certain crew; requiring certain persons to comply with certain provisions; prohibiting certain persons from subcontracting with certain persons; requiring labor-only crew to provide certain proof of registration; removing provision allowing certain fee to be prorated; exempting certain persons from certain provisions; requiring certain exempted labor-only crews to meet certain requirements; removing certain provision expiring certain registrations; removing certain requirements allowing certain hearing; removing certain requirement requiring registrar to suspend certain registration; removing certain requirement for certain certificate to be suspended; requiring registrar to handle certain complaints; allowing certain laborer under certain supervision; requiring certain hours of continuing education; requiring continuing education to cover certain information; amending Section 4, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1151.25a), which relates to residential roofing endorsement requirements; establishing certain grandfathering-in period; requiring certain continuing education; requiring certain course, provider, and instructor to be approved by the Committee of Roofing Examiners; requiring certain continuing education material to cover certain information; requiring certain applicants to have certain endorsement by certain date; allowing certain endorsee to have certain inactive status; prohibiting certain inactive endorsee from acting as certain qualifying party; amending 59 O.S. 2021, Sections 1151.26, 1151.27, and 1151.28, which relate to establishment of Committee of Roofing Examiners, powers and duties of Committee, and Roofing Hearing Board; removing certain requirement for the Committee; including registration and endorsement requirement in certain provisions; updating statutory language; updating statutory

reference; repealing Section 5, Chapter 368, O.S.L. 2025; and providing an effective date.

SUBJECT: Roofing contractors

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1151.2, is amended to read as follows:

Section 1151.2. As used in the Roofing Contractor Registration Act:

1. "Advertise" means any written publication, dissemination, solicitation, contract, bid, promotional item, or circulation which is intended to directly or indirectly induce any person to contract for roofing construction services with the advertiser, including, but not limited to, business cards, telephone directory display advertisements, vehicle signage, radio, television and electronic solicitations;

2. "Applicant" means the qualifying party, or if no qualifying party, any person applying under the Roofing Contractor Registration Act for a roofing contractor registration to be issued by the Construction Industries Board;

3. "Board" means the Construction Industries Board;

4. "Committee" means the Committee of Roofing Examiners;

5. "Homeowner" means one who owns and resides in, or who resides in, or who contracts for the purchase, construction, remodeling or repairing of a residence;

6. "Nonresident contractor" means any contractor who has not established and maintained a place of business as a roofing contractor in this state within the preceding year, or who claims residency in another state, or who has not submitted an income tax return as a resident of this state within the preceding year;

7. "Owner" means the person who owns the property or is a lessee of the property;

8. "Person" means any natural person, firm, limited or general partnership, corporation, association, limited liability company, trust, ~~association~~, other legal entity and any organization capable of conducting business, or any combination thereof acting as a unit, unless the intent to give a more limited meaning is disclosed clearly by the Roofing Contractor Registration Act;

9. "Prime contractor" means a general contractor, commercial contractor, or other contractor who contracts directly with the owner for construction trade work ~~in~~ covering multiple trade areas and engages endorsed contractors to perform the work as required by law, and who does not advertise for endorsed contractor work unless he or she is endorsed for the work as required by law;

10. "Project manager" means one who manages construction projects consisting of work involving multiple trades;

11. "Public contract" means a contract with the State of Oklahoma, its political subdivisions, or any board, commission, or department thereof, or with any board of county commissioners, or with any city council, school board, or with any state or municipal agency, or with any other public board, body, commission, or agency authorized to award contracts for the construction or reconstruction of public works and includes subcontracts undertaken to perform works covered by the original contract or any part thereof;

12. "Qualifying party" means a natural individual person who is a registrant and an officer or owner of the corporation, a member of the limited liability company, or a general partner of the limited liability partnership, and who is actively engaged in the work undertaken by the registrant roofing contractor work for which a registration is required pursuant to the Roofing Contractor Registration Act who meets the experience and ability requirements for registration on behalf of the registrant associated with and responsible for all roofing contractor work of such entity;

13. "Registrar" means the Construction Industries Board or any person designated by the Board to administer the provisions of the Roofing Contractor Registration Act;

14. "Registration" means the process of applying for an initial or renewal registration which upon approval is exhibited by a registration number and card issued to a qualifying party pursuant to the Roofing Contractor Registration Act;

15. "Registration number" means the roofing registration number issued to a qualifying party by the registrar ~~to the registrant's qualifying party;~~

16. "Registrant" means a holder of a roofing registration issued pursuant to the Roofing Contractor Registration Act and is the qualifying party unless any required endorsement is in inactive endorsee status;

17. "Residence" means a single structure for residential occupancy or use which is a detached one- to four-family dwelling or a multiple single-family dwelling (townhouse) not more than three stories/floors above grade plane in height with a separate means of egress, and any appurtenances thereto, which is intended for use as a primary habitation and is in compliance with the International Residential Code, as adopted by the Oklahoma Uniform Building Code Commission;

18. "Roofing contractor" means any person, including a subcontractor and nonresident contractor, engaged in the business of commercial or residential roofing contractor work, or who himself or herself, or through another, attempts to or advertises, holds himself or herself out as having, or purports to have, the capacity to undertake roofing contractor work, or offers to engage in or solicits roofing installation-related services, including construction, installation, renovation, remodeling, reroofing, repair, maintenance, alteration, and waterproofing, unless specifically exempted in the Roofing Contractor Registration Act, who is to be properly qualified and endorsed as required pursuant to the act. Roofing contractor shall not mean:

- a. a person engaged in the demolition of a structure or the cleanup of construction waste and debris that contains roofing material,
- b. a person working under the direct supervision of the ~~roofing contractor~~ qualifying party who is hired either as an employee, day laborer, or contract laborer whose payment, received in any form, from the roofing contractor is subject to self-employment tax,
- c. a person working on his or her own property or that of an immediate relative and such person is not receiving any compensation, or

- d. a person acting as a handyman who is receiving compensation from the property owner and who is performing the roofing repair in conjunction with other repairs to the property and who does not perform more than two roofing jobs per year;

19. "Roofing contractor work" means the installation, fabrication or assembly of equipment or systems included in roofing systems as defined in the International Building Code and the International Residential Code, as adopted by the Oklahoma Uniform Building Code Commission, and which codes are hereby adopted and incorporated by reference. Roofing construction work includes, but is not limited to, installation, renovation, remodeling, reroofing, reconstructing, repair, maintenance, improvement, alteration, and waterproofing, unless specifically exempted in the Roofing Contractor Registration Act.

- a. "Commercial roofing contractor work" means work done on commercial, industrial or public building roofing systems or structures as defined in the International Building Code, as adopted by the Oklahoma Uniform Building Code Commission; except it does not mean buildings used for commercial purposes having equivalent or substantially the same roofing requirements as a "residence" defined herein, including but not limited to business offices converted from a structure that formerly was a residence, and
- b. "Residential roofing contractor work" means work done on roofing systems as defined in the International Residential Code, as adopted by the Oklahoma Uniform Building Code Commission, or as defined as a "residence" herein; including buildings used for commercial purposes having asphalt shingles, tile shingles, synthetic shakes, wood shakes or other comparable materials applied to a sloped roof equal to the same roofing requirements as a "residence" defined herein, including but not limited to business offices converted from a structure that formerly was a residence;

20. "Roofing Hearing Board" means the Roofing Hearing Board which shall consist of a designee of the Construction Industries

Board, as chair, and the members of the Committee of Roofing Examiners;

21. "Subcontractor" means one who contracts with a prime contractor, general contractor, residential contractor, project manager, property manager, another subcontractor, or another entity for roofing contractor work;

22. "Variance" means the use of an alternative material or method of construction from that prescribed in the International Building Code or the International Residential Code or other approved documents by the Oklahoma Uniform Building Code Commission for use at a particular location or project specified in the variance application;

23. "Variance and Appeals Board" means the Oklahoma State Roofing Installation Code Variance and Appeals Board;

24. "Labor-only crews" means a crew that only provides labor and is working directly for a registered roofing contractor that possesses a proper current roofer endorsement in good standing and is under the direct supervision of that endorsed roofer party to perform the installation of asphalt shingles, tile shingles, synthetic shakes, wood shakes or other comparable materials to a sloped roof and to complete roofing work and does not provide any materials; and

25. "Endorsed roofing contractor" means a roofing contractor as defined in this act who is properly registered and endorsed pursuant to the requirements for commercial or residential roofing contractor endorsement and does not include labor-only crews as they are exempt from endorsement;

26. "Inactive endorsee" means the category status of a registered roofing contractor who has obtained an endorsement by examination and maintains a current endorsement but does not hold the insurance for the roofing firm and is not the qualifying party for the roofing firm, and shall not act as the qualifying party authorized to engage in roofing work for the roofing firm unless and until first becoming an active endorsee by submitting an application, meeting all qualifications and receiving an active endorsement;

27. "Roofing firm" means a firm, limited or general partnership, corporation, association, limited liability company,

trust, other legal entity or any organization capable of conducting business, or any combination thereof acting as a unit, unless the intent to give a more limited meaning is disclosed clearly by the Roofing Contractor Registration Act, that is registered with the Oklahoma Secretary of State and has an associated qualifying party registered and endorsed pursuant to this act who is responsible for all roofing contract work of such entity; and

28. "Prefabricated- or pre-engineered-metal-building erector" means the labor necessary to construct the components of a prefabricated- or pre-engineered-metal-building package, known as PEMB, as defined by the Construction Science Institute and Construction Specifications Institute in Division 13, Special Construction: Metal Building Systems.

SECTION 2. AMENDATORY 59 O.S. 2021, Section 1151.2a, as amended by Section 1, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1151.2a), is amended to read as follows:

Section 1151.2a. A. The Construction Industries Board is authorized to administer and enforce the Roofing Contractor Registration Act.

B. 1. The Construction Industries Board ~~is authorized to~~ shall administer and enforce the commercial and residential roofer endorsement provisions of the Roofing Contractor Registration Act.

2. The Construction Industries Board shall ~~have the authority to~~ administer and enforce the provisions of the commercial and residential roofer endorsement provisions of the Roofing Contractor Registration Act, including the authority to:

- a. establish the examination and continuing education requirements and procedures for endorsements of persons desiring or intending to engage, or are engaging in the business or trade of a commercial or residential roofing contractor with the advice and input from the Committee of Roofing Examiners using assistance from a third-party vendor as necessary and appropriate,
- b. establish and enforce the minimum standards of commercial and residential roofer endorsements in this state and rules promulgated pursuant to the commercial and residential roofer endorsement provisions of the

Roofing Contractor Registration Act with the advice and input from the Committee of Roofing Examiners,

- c. promulgate, prescribe, amend, and repeal rules necessary to implement the provisions of the commercial and residential roofer endorsement of the Roofing Contractor Registration Act with the advice and input from the Committee of Roofing Examiners,
- d. issue, renew, suspend, revoke, modify, or deny endorsements to engage in commercial and residential roofing contractor work pursuant to the Roofing Contractor Registration Act,
- e. conduct investigations for the purpose of inspecting commercial and residential roofer endorsements for compliance with the commercial or residential roofer endorsement provisions of the Roofing Contractor Registration Act, and of the rules of the Board promulgated pursuant thereto, into the qualifications of applicants and allegations of violations,
- f. establish and levy administrative fines against any person who violates any of the provisions of the commercial or residential roofer endorsement standards of the Roofing Contractor Registration Act or any rule promulgated pursuant thereto, not to exceed ~~five percent (5%) of the commercial job~~ Five Thousand Dollars (\$5,000.00). For any residential job, on a first violation, the Board may levy an administrative fine not to exceed Five Hundred Dollars (\$500.00); on any second violation, levy an administrative fine not to exceed One Thousand Dollars (\$1,000.00); on a third violation, levy an administrative fine not to exceed Three Thousand Five Hundred Dollars (\$3,500.00); and for any subsequent violation, revoke the registration and commercial or residential roofer endorsement,
- g. initiate disciplinary proceedings and provide hearings on any person who violates any of the provisions of the commercial and residential roofer endorsement standards of the Roofing Contractor Registration Act or any rule promulgated pursuant thereto,

- h. request prosecution of and initiate injunctive proceedings against any person who violates any of the provisions of the commercial and residential roofers endorsement in the Roofing Contractor Registration Act or any rule promulgated pursuant to the commercial or residential roofer endorsement of the Roofing Contractor Registration Act, and
- i. exercise all incidental powers as necessary and proper to implement and enforce the provisions of the commercial and residential roofer endorsement of the Roofing Contractor Registration Act and the rules promulgated pursuant thereto.

~~C. 1. The Construction Industries Board shall administer and enforce the residential roofer endorsement provisions of the Roofing Contractor Registration Act.~~

~~2. The Construction Industries Board shall administer and enforce the provisions of the residential roofer endorsement provisions of the Roofing Contractor Registration Act, including:~~

- ~~a. establish the examination and continuing education requirements and procedures for endorsements of persons desiring or intending to engage in the business or trade of a residential roofing contractor with the advice and input from the Committee of Roofing Examiners using assistance from a third party vendor as necessary and appropriate,~~
- ~~b. establish and enforce the minimum standards of residential roofer endorsements in this state and rules promulgated pursuant to the residential roofer endorsement provisions of the Roofing Contractor Registration Act with the advice and input from the Committee of Roofing Examiners,~~
- ~~c. promulgate, prescribe, amend, and repeal rules necessary to implement the provisions of the residential roofer endorsement of the Roofing Contractor Registration Act with the advice and input from the Committee of Roofing Examiners,~~
- ~~d. issue, renew, suspend, revoke, modify, or deny endorsements to engage in residential roofing~~

~~contractor work pursuant to the Roofing Contractor Registration Act,~~

- ~~e. conduct investigations for the purpose of inspecting residential roofer endorsements for compliance with the residential roofer endorsement provisions of the Roofing Contractor Registration Act, and of the rules of the Board promulgated pursuant thereto, into the qualifications of applicants and allegations of violations,~~
- ~~f. establish and levy administrative fines against any person who violates any of the provisions of the residential roofer endorsement standards of the Roofing Contractor Registration Act or any rule promulgated pursuant thereto. For any residential job, on a first violation, the Board may levy an administrative fine not to exceed Five Hundred Dollars (\$500.00); on any second violation, levy an administrative fine not to exceed One Thousand Dollars (\$1,000.00); on a third violation, levy an administrative fine not to exceed Three Thousand Five Hundred Dollars (\$3,500.00); and for any subsequent violation, revoke the registration and residential roofer endorsement,~~
- ~~g. initiate disciplinary proceedings and provide hearings on any person who violates any of the provisions of the residential roofer endorsement standards of the Roofing Contractor Registration Act or any rule promulgated pursuant thereto,~~
- ~~h. request prosecution of and initiate injunctive proceedings against any person who violates any of the provisions of the residential roofers endorsement in the Roofing Contractor Registration Act or any rule promulgated pursuant to the residential roofer endorsement of the Roofing Contractor Registration Act, and~~
- ~~i. exercise all incidental powers as necessary and proper to implement and enforce the provisions of the residential roofer endorsement of the Roofing Contractor Registration Act and the rules promulgated pursuant thereto.~~

SECTION 3. AMENDATORY 59 O.S. 2021, Section 1151.3, is amended to read as follows:

Section 1151.3. A. All roofing contractors shall be registered annually by the Construction Industries Board. All registrations shall be nontransferable. It is unlawful for any person to act as a roofing contractor without having a current and valid roofing contractor's registration or act as a commercial or residential roofing contractor without a current and valid ~~commercial~~ roofer endorsement issued pursuant to the Roofing Contractor Registration Act, unless the person is exempt under the Roofing Contractor Registration Act. Evidence of securing a permit, including roofing work from a governmental agency or the employment of a person on a roofing project, shall be accepted in any court as prima facie evidence of the existence of a contract. Engaging in or offering to engage in work without a valid registration and active commercial or residential roofer endorsement as required for roofing contractors or performing roofing services during any period when the roofing contractor's registration is denied, not in good standing, expired, suspended, or revoked or when the required endorsement is not active is a violation of the Roofing Contractor Registration Act. Subcontracting roofing work to an unregistered or unendorsed roofer or improperly endorsed roofing contractor when the work requires an active endorsement is a violation of this act. Failure to provide proof to the registrar on the jobsite of the active current and properly endorsed qualifying party directly supervising the job is a violation of the Roofing Contractor Registration Act for which enforcement action may be taken on each person performing roofing work on the jobsite and each subcontractor up to and including the contractor contracting directly with the owner.

Each copy of a roofing contractor's record, which would include responses to any complaints, that is from and verified by the registrar, or a verified statement from the registrar that there is no record as no application was made, shall be received in all courts in this state as prima facie evidence of the facts stated therein.

A verified copy of a roofing contractor's administrative citation for unregistered activity or without required commercial or residential roofer endorsement and order of final disposition from the registrar shall be received in all courts in this state as prima facie evidence of the facts stated therein, including establishment thereby of the ~~first~~ offense.

B. A person shall not engage or offer to engage in, by advertisement or otherwise, the business nor act in the capacity of a roofing contractor within this state nor shall that person bring or maintain any claim, action, suit, or proceeding in any court of this state related to the person's business or capacity as a roofing contractor without a valid registration and commercial or residential roofer endorsement, when required, continuously while performing the work for which the claim, action, suit, or proceeding is sought, as provided in the Roofing Contractor Registration Act. No ~~business entity~~ person shall advertise or act as a roofing contractor unless such ~~business~~ person is a registered roofing contractor with a valid commercial or residential roofer endorsement, when required, and is in good standing, and is associated with and responsible for all roofing contractor work of such entity. Any ~~business entity~~ person violating the provisions of ~~this subsection~~ the Roofing Contractor Registration Act shall be subject to administrative penalty by the Board not to exceed Five Thousand Dollars (\$5,000.00) for commercial work and not to exceed Three Thousand Five Hundred Dollars (\$3,500.00) for residential work.

C. A roofing firm shall only have one qualifying party associated with and responsible for each roofing firm.

~~D. A person who fails to obtain a valid registration and endorsement when required prior to advertising or offering to engage as or acting as a roofing contractor as defined in the Roofing Contractor Registration Act, or a person who acts as a roofing contractor while his or her registration is not in good standing or is suspended or revoked without complying with the required disclosure and option for homeowner to cancel the contract provisions of subsection I of Section 1151.5 of this title, or a person who violates any provision of the Roofing Contractor Registration Act, in addition to any administrative penalties, shall be guilty of a misdemeanor, upon conviction or plea any plea of guilty, nolo contendere or finding of guilt, punishable by a fine not to exceed Five Hundred Dollars (\$500.00) Five Thousand Dollars (\$5,000.00) for each violation. More than one misdemeanor violation in any twelve-month period shall be grounds for the suspension of the registration, and shall cause the person to be ineligible for registration for a period not to exceed twenty-four (24) months after all requirements of the sentence, or deferment of sentence, and probation have been met, including the payment of any restitution or rehabilitative treatment.~~

~~D. In lieu of referring complaints of violations~~ E. Violations of the Roofing Contractor Registration Act also may be referred to the district attorney for misdemeanor prosecution, ~~the Board in its discretion may issue administrative fines to any person up to Five Hundred Dollars (\$500.00) for violations of any provision of the Roofing Contractor Registration Act or its rules or regulations. A person who fails to obtain a valid registration prior to acting as a roofing contractor, or a person who acts as a roofing contractor while his or her registration or commercial roofer endorsement is not in good standing or is suspended or revoked without complying with the required disclosure and option for homeowner to cancel the contract provisions of subsection I of Section 1151.5 of this title, on first offense, may be administratively fined and disciplined after notice and opportunity for hearing before the Roofing Hearing Board. A person who violates any other provision of the Roofing Contractor Registration Act, on first offense within a two-year period, may be administratively fined and disciplined by the Roofing Hearing Board in its discretion in lieu of referral to the district attorney as a misdemeanor, or the matter may be referred to the district attorney. Misdemeanor conviction, guilty plea, or nolo contendere plea.~~ Any plea of guilty, nolo contendere or finding of guilt due to alleged violations of the Roofing Contractor Registration Act shall be grounds for the revocation of the registration and shall cause the person to be ineligible for registration for a period not to exceed twelve (12) months after all requirements of the sentence, or deferment of sentence, and probation have been met, including the payment of any restitution or rehabilitative treatment.

~~E. F.~~ F. Administrative fines collected pursuant to the Roofing Contractor Registration Act shall be placed in the Roofing Contractor Registration Revolving Fund pursuant to Section 1151.20 of this title.

~~F. G.~~ G. It is the duty of the building official or other authority charged with the duty of issuing roofing permits of any incorporated municipality or subdivision of the municipality or county to refuse to issue a roofing permit for any roofing undertaking which would require a registration pursuant to the Roofing Contractor Registration Act unless the applicant has furnished evidence that he or she is either registered as required or is exempt from the registration requirements of the Roofing Contractor Registration Act.

~~G. H.~~ The Roofing Hearing Board, or its designee, may make application to the appropriate court for an order enjoining the acts or practices prohibited by the Roofing Contractor Registration Act, and upon a showing ~~by the Roofing Hearing Board~~ that the person or firm has engaged in, or is about to engage in, any ~~of the~~ prohibited acts or practices, an injunction, restraining order or other order as may be appropriate shall be granted by the court.

SECTION 4. AMENDATORY 59 O.S. 2021, Section 1151.4, is amended to read as follows:

Section 1151.4. The Construction Industries Board is authorized to administer the Roofing Contractor Registration Act. In addition to the powers stated in the Construction Industries Board Act, the Board shall have the following powers:

1. Exercise all incidental powers and duties necessary to effectuate the provisions of the Roofing Contractor Registration Act;

2. Promulgate, adopt, amend, suspend and repeal rules as may be reasonably necessary to effectuate the provisions of the Roofing Contractor Registration Act, the proper performance of its duties, and to define categories and limitations for such registration and endorsement. The rule-making powers of the Construction Industries Board are subject to the Administrative Procedure Act, including those pertaining to emergency or temporary rules or regulations;

3. Promulgate forms to implement the provisions of the Roofing Contractor Registration Act. The Board may administer any provision of ~~this act~~ the Roofing Contractor Registration Act through use of the Internet or other technology as deemed necessary or appropriate;

4. Issue, refuse to issue, suspend, revoke or deny a registration or endorsement, or take any other action provided by the requirements of the Roofing Contractor Registration Act;

5. Collect fees, fines and civil penalties pursuant to the Roofing Contractor Registration Act and the promulgated rules;

6. Enter upon public and private property for the purpose of inspecting workers' registrations, endorsements, and roofing work for compliance with the provisions of the Roofing Contractor Registration Act and of the rules of the Board promulgated pursuant thereto;

7. Employ personnel and procure such supplies and equipment as may be necessary to carry out and implement the provisions of ~~this act~~ the Roofing Contractor Registration Act, subject to budgetary limitations and funding;

8. Investigate complaints, qualifications of qualifying parties or applicants for registration or endorsement, and any person to the extent necessary to determine if the person is ~~engaged in the~~ violation of the provisions of the Roofing Contractor Registration Act, ~~including unlawful or unregistered activity~~. The Construction Industries Board, in addition to any administrative fine issued, may refer the matter for misdemeanor prosecution, whether or not the person ceases the unlawful ~~and/or~~ or unregistered activity;

9. Initiate disciplinary proceedings, request prosecution of and initiate injunctive proceedings against any person who violates any of the provisions of the Roofing Contractor Registration Act or any rule promulgated pursuant to the Roofing Contractor Registration Act;

10. Reprimand ~~or~~, place on probation, ~~or both~~, suspend, or revoke any holder of a registration pursuant to the Roofing Contractor Registration Act;

11. Administer oaths, order or subpoena the attendance of witnesses, the inspection of records and premises, and the production of books, records, and papers for the investigation of matters that may come before the Board;

12. Authority to appoint members who shall serve as a code variance and appeals board;

13. Maintain an administrative staff to carry out the responsibilities of the Board and Committee;

14. The registrar shall maintain and provide a complete roster listing the names, last-known addresses, and status of all registrants. The registrar may condense or provide an abstract of a roofing contractor's record for public information; provided, a complete record is available for public inspection upon written request; and

15. Upon the advice and recommendation of the Committee, the Board may, in its discretion, enter into a written reciprocity

agreement with another state if the requirements for registration and endorsement in the other state are deemed by the Committee to be substantially the same or equivalent to the requirements for obtaining an original registration in force and endorsement in this state at the date of such registration, and then issue a registration by reciprocity to a qualified party applicant who is currently licensed or registered to engage in roofing contractor work in another state that has entered into a written reciprocity agreement with the Board.

SECTION 5. AMENDATORY 59 O.S. 2021, Section 1151.5, as amended by Section 2, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1151.5), is amended to read as follows:

Section 1151.5. A. Applications for registration shall be made to the Construction Industries Board in writing on forms approved and provided by the Board and shall be accompanied by the proper fee.

B. An applicant or qualifying party whose registration is denied, or the person has a conviction, ~~or pled guilty or nolo contendere to a misdemeanor~~ any plea of guilty, nolo contendere or finding of guilt, or otherwise fails to meet the requirements of application, ~~may obtain a hearing before the Committee of Roofing Examiners in order to~~ provide with the application additional information in support of the application requirements and any other information showing the applicant's ability and willingness to comply with the requirements of the Roofing Contractor Registration Act, and to protect the public health, safety and welfare.

C. To obtain a roofing contractor registration under the Roofing Contractor Registration Act, a qualifying party who is eighteen (18) years of age or older shall submit, on forms the registrar prescribes:

1. An application under oath containing a statement:
 - a. of the qualifying party's experience and qualifications as a roofing contractor, if any,
 - b. that the qualifying party desires the issuance of a roofing contractor registration certificate,
 - c. that the qualifying party has read the Roofing Contractor Registration Act and will comply with the

provisions of the Roofing Contractor Registration Act and rules,

- d. that the qualifying party will comply with state laws and local ordinances relating to standards and permits,
- e. that the qualifying party has or has not been registered or licensed as a roofing contractor in another state and whether any disciplinary action has been taken against such registration or license and whether it is currently in good standing, and
- f. that the nonresident qualifying party appoints the Secretary of State as legal service agent for all lawful process to be served upon the applicant for work performed in this state or as otherwise provided in the Roofing Contractor Registration Act;

2. The qualifying party's name, physical address and proof thereof, business name, telephone number, address and place of incorporation, if different, information on any other person who will be authorized to act as the business entity, and the applicant's telephone number, if different;

3. The entity's federal tax ID number, or the employer's or owner's or qualifying party's Social Security number, and the employer's account number assigned by the Oklahoma Employment Security Commission. The Social Security number information shall remain with the registrar as confidential and privileged except for necessary disclosures to state agencies to verify compliance with requirements with this act, or upon request by law enforcement; and

4. A copy of the roofing contractor's certificate of liability insurance shall be filed with the application and shall be not less than Five Hundred Thousand Dollars (\$500,000.00) for residential roofing contractor work and shall not be less than One Million Dollars (\$1,000,000.00) for commercial roofing contractor work. Additionally, the Construction Industries Board shall be listed as a certificate holder. Any insurance company issuing a liability policy to a roofing contractor pursuant to the provisions of the Roofing Contractor Registration Act shall be required to notify the Construction Industries Board in the event such liability policy is canceled for any reason or lapses for nonpayment of premiums. All registrations granted under the Roofing Contractor Registration Act

shall be ~~suspended~~ not in good standing on the date of the policy cancellation. The registrar must receive proof of insurance prior to restoring the registration.

In addition, the roofing contractor shall submit proof that the contractor has secured workers' compensation coverage satisfactory under the Workers' Compensation Act, or an affidavit of exemption or self-insurance as authorized pursuant to the Workers' Compensation Act. If the registrar deems it appropriate or necessary, the registrar may also require other information to be included on the application form to assist the registrar in registering the person as a contractor.

D. The qualifying party applying for a commercial roofer endorsement must provide information on the legal entity, including, but not limited to, the articles, organizational agreements or documents establishing the legal entity, including a list of the officers, members, managers, partners, or other managing agents of the legal entity. The qualifying party shall also provide a certificate of good standing or a trade name report from the Office of the Secretary of State.

E. The registrar shall refuse to register or renew any person if the registrar determines:

1. The application contains false, misleading, or incomplete information;

2. The applicant fails to provide a certificate of good standing or a trade name report from the Office of the Secretary of State;

3. The applicant, qualifying party, or any member of the legal entity fails or refuses to provide any information requested by the registrar;

4. The applicant fails or refuses to pay the required fees;

5. The applicant, qualifying party, or owner or officer or managing member of the legal entity is ineligible for registration due to a suspended or revoked registration in this state;

6. The nonresident applicant has a revoked or suspended registration or license required by law for roofing contractors in another state; or

7. The applicant, qualifying party, or legal entity has failed or refuses to submit any taxes due in this state.

F. The registrar shall notify the applicant in writing if the registrar denies a registration or renewal certificate, and shall provide the applicant an opportunity to respond to or cure any defect in the written application or renewal for a period of ten (10) days from the date of the written notification. ~~An~~ A renewal applicant aggrieved by a decision of the registrar denying a registration or renewal may appeal the decision as provided in the Roofing Contractor Registration Act, the Construction Industries Board Act, or the Administrative Procedures Act, or the applicant may reapply after a ninety-day waiting period, if otherwise eligible under the provisions of the Roofing Contractor Registration Act. The application and renewal fees shall not be refundable.

G. The registrar shall classify all persons who fail to renew their registration or endorsement, if any, as expired; and may classify a registration or endorsement as not in good standing, suspended or revoked the registration of any roofing contractor who fails to:

1. Maintain liability insurance coverage;
2. Maintain workers' compensation coverage satisfactory under the Workers' Compensation Act, or provide an affidavit of exemption or self-insurance as authorized pursuant to the Workers' Compensation Act;
3. File, renew, or properly amend any fictitious name certificate;
4. Maintain an active status of a corporation or registration as a foreign corporation, a limited liability company or registration as a foreign limited liability company, a limited liability partnership registration or foreign limited liability partnership registration, or a limited partnership certificate or limited partnership or foreign limited partnership certificate of authority, with the Office of the Secretary of State;
5. File or renew a trade name registration;
6. Maintain or renew a roofing contractor registration as provided in the Roofing Contractor Registration Act;

7. Notify the registrar of a change in name, address, legal business entity, qualifying party, legal service agent, or adjudication by a court of competent jurisdiction for any act or omission specified in subsection A of Section 1151.14 of this title or a violation of the Roofing Contractor Registration Act;

8. Maintain a registration as required by law in another state while registered in this state as a nonresident roofing contractor; or

9. File and pay all taxes of the qualifying party and legal entity when due in this state.

H. The registrar shall send a written notice to the qualifying party when his or her registration ~~is not in good standing~~ status has changed.

I. Any roofing contractor who has been notified by the registrar that his or her registration is not in good standing shall cease soliciting or entering new roofing services and projects as of the date of such notification; however, the roofing contractor shall be allowed to complete roofing projects where actual physical work has begun prior to the date of issuance of the notice that his or her registration is not in good standing. The roofing contractor must disclose the change in standing to any homeowner or other person who has an interest in any job covered under the Roofing Contractor Registration Act. Upon notice of a change in standing, the homeowner shall have the option to cancel the contract. The roofing contractor will be owed the actual cost incurred for materials and the market value of labor already incurred on the job. The roofing contractor must obtain an updated authorization from the homeowner and other parties of interest if there is an agreement to continue the job as originally negotiated. If the roofing contractor fails to correct the deficiency specified in the notice by evidence satisfactory to the registrar within thirty (30) days of the date of the notice, or if the roofing contractor solicits or enters into new roofing services contracts or projects while the roofing contractor's registration is not in good standing, expired or while such registration is suspended or revoked, the roofing contractor shall be in violation of the provisions of the Roofing Contractor Registration Act.

J. ~~Any registration that remains not in good standing for a sixty-day period shall be suspended on the sixtieth day from the~~

~~date of issuance of the notice to the roofing contractor that his or her registration is not in good standing. Any registration that remains not in good standing, and is suspended for such cause, shall be revoked on the ninetieth day from the date of issuance of the notice to the roofing contractor that his or her registration is not in good standing. The registrar shall notify the roofing contractor upon suspension or revocation of his or her registration for failure to comply in bringing such registration into good standing as required by law.~~ The roofing contractor may reinstate his or her registration to good standing by paying the required fees provided in Section 1151.12 of this title and complying with all other requirements for issuance of a registration in good standing.

K. Any registrant, qualifying party, or roofing company owner aggrieved by the decision of the registrar to suspend or revoke a registration pursuant to this section may appeal such decision as provided in ~~this act~~ the Roofing Contractor Registration Act or the Administrative Procedures Act.

SECTION 6. AMENDATORY 59 O.S. 2021, Section 1151.7, is amended to read as follows:

Section 1151.7. The holder of a roofing contractor registration certificate is the registrant and is entitled to engage in the roofing business within this state pursuant to the provisions of the Roofing Contractor Registration Act, when the registrant is the active qualifying party, and subject to the following limitations:

1. A roofing contractor's registration certificate number and any required endorsement shall be valid and in good standing at the time of soliciting a project and during subsequent job performance;

2. Each active roofing contractor issued a roofing contractor registration shall display ~~the~~ his or her roofing firm name, endorsement information, if required, and the roofing contractor registration number bearing the initials "OK" preceding that registration number issued by the registrar on all vehicles used to transport materials and tools in the operation of the business. Such names, endorsements and numbers shall be printed in letters and numerals at least two (2) inches in height in a conspicuous location on both sides of each vehicle in contrasting color to the background color;

3. Each registered roofing contractor shall be properly endorsed as required by the Roofing Contractor Registration Act and,

when issued a commercial or residential roofer endorsement shall display the roofing firm name and the information that the roofing contractor has a commercial or residential roofer endorsement issued by the registrar on all vehicles used to transport materials and tools in the operation of the business. Such endorsement information shall be in print size that is at least two (2) inches in height in a conspicuous location on both sides of each vehicle in contrasting color to the background color;

4. Each actively endorsed registrant who has contracted directly with a prime contractor or owner shall post in a conspicuous place on the job site the name, existence of any endorsement, registration number, and telephone number for the registration and endorsement under which any work is being performed, and on all media containing the registrant's name, including but not limited to magnetic signs on vehicles, business cards, contracts, bids, letterhead, signs, and advertisements. The prime contractor or registered and endorsed roofing contractor, if no prime contractor, remains responsible under the Roofing Contractor Registration Act for required registration and endorsement compliance when subcontracting the roofing work as is every subcontractor when subcontracting that roofing work. Subcontracting to an unregistered roofing contractor is a violation of the Roofing Contractor Registration Act. Subcontracting to an unendorsed or improperly endorsed roofing contractor when an active endorsement is required is a violation of the Roofing Contractor Registration Act. It is the responsibility of the prime contractor, all contractors, and all subcontractors to comply with this act and to provide proof on the jobsite to the registrar of current registration and active endorsement of the qualifying party providing the required direct supervision. Failure to provide proof to the registrar on the jobsite of the active current and properly endorsed qualifying party directly supervising the job is a violation of this act for which enforcement action may be taken on each person performing roofing work on the jobsite and each subcontractor up to and including the contractor contracting directly with the owner;

5. A roofing contractor's registration certificate number and endorsement information shall be submitted when applying for any permit issued by the state, or any of its political subdivisions, for commercial or residential roofing services or projects, if a permit is required by such authority, and shall be written upon each permit issued. Provided, however, no permitting authority shall require a roofing contractor registration certificate as a condition

to issuing a permit when registration is exempt pursuant to Section 1151.9 of this title;

6. A roofing contractor's registration certificate cannot be shared or used by any other individual or business entity; provided, however, a business firm, partnership, association, corporation, limited liability company, or other group or combination thereof acting as a unit may be granted a single roofing registration certificate number for use by designated roofing contractors acting as agents for the business entity when the application for registration contained sufficient information on each member, partner, officer and agent and the registrar issued a single certificate number to such persons as a business unit;

7. Upon any change to the name, address, business entity, qualifying party, change in firm ownership of fifty percent (50%) or more of the stock or beneficial interest in the company, or legal service agent of a roofing contractor or upon adjudication by a court of competent jurisdiction for a violation of the Roofing Contractor Registration Act or an act or omission specified in subsection A of Section 1151.14 of this title, the registrar shall be notified in writing within ten (10) days. Any proposed or final order or notice of hearing to the attorney of record or the last-known address of record shall be considered delivered when sent registered, certified or post office receipt-secured and deposited in the United States mail ~~and/or sent registered or certified or post office receipt-secured~~. Any other communication to the attorney of record or the last-known address of record of a registrant shall be considered delivered when deposited in the United States mail, regular mail;

8. A roofing contractor shall comply with state laws and local ordinances relating to standards and permits for roofing services and projects;

9. A roofing contractor must pay taxes due in this state;

10. Each registrant shall notify the registrar within ten (10) days after he or she receives notice that any felony conviction has been rendered against him or her or the registrant or qualifying party has ~~pled~~ a plea of guilty or nolo contendere, or a finding of guilt to a felony. The notification shall be in writing, by certified mail, and shall include a copy of the conviction, plea, finding of guilt, or judgment and sentence;

11. Each registrant shall notify the registrar immediately upon receipt of an order imposing disciplinary action upon its registration issued by any other professional regulatory board, in this or any other jurisdiction. Disciplinary action taken against any other professional registration or license held by the registrant in this jurisdiction or any other jurisdiction is grounds for disciplinary action against the registration issued pursuant to the Roofing Contractor Registration Act; ~~and~~

12. Each registrant shall utilize a valid written contract when engaging in the business of roofing contractor work except when an actively endorsed roofing contractor subcontracts with a labor-only crew that is being directly supervised by the qualifying party and is in compliance with this act including posting of the qualifying party's information at the jobsite. The contract shall contain the requirements described in Section 1151.21 of this title. Committing fraud when executing or materially altering a roofing contract, mortgage, promissory note or other document incidental to performing roofing contractor work, is a violation of the Roofing Contractor Registration Act;

13. All persons shall comply with the provisions of the Roofing Contractor Registration Act and violations are to be enforced as provided in the Roofing Contractor Registration Act;

14. Registered and endorsed roofing contractors shall not subcontract with unregistered or unendorsed, if endorsement is required, roofing contractors or any contractors who are not in good standing, and only utilize labor-only crews who are currently registered in good standing; and

15. Labor-only crews shall provide proof of their registration in good standing and the registration number with proper endorsement for the roofing contractor qualifying party with whom they are directly working and who is providing direct supervision when requested.

SECTION 7. AMENDATORY 59 O.S. 2021, Section 1151.8, is amended to read as follows:

Section 1151.8. A. At the time of making application for a roofing contractor registration certificate pursuant to the Roofing Contractor Registration Act, the applicant shall pay to the registrar a fee of Seventy-five Dollars (\$75.00) for the annual registration certificate.

B. All monies collected by the registrar for roofing contractor registration applications, renewals and other fee assessments shall be deposited by the registrar and credited to the Roofing Contractor Registration Revolving Fund and such funds shall be used by the registrar to implement and administer the provisions of the Roofing Contractor Registration Act.

~~C. The fee to be submitted with an application for a roofing contractor registration may be prorated as set by the provisions of the Roofing Contractor Registration Act or rules. Unless prorated at the time of initial registration,~~ fees for initial registration shall be paid in the amount stated in subsection A of this section and such registration certificates shall expire each year on the last day of the birth month of the qualifying party. ~~Renewals will be prorated as provided in Section 1151.3 of this title.~~

D. A renewal fee for a roofing contractor registration shall be Seventy-five Dollars (\$75.00) for the annual renewal registration certificate.

SECTION 8. AMENDATORY 59 O.S. 2021, Section 1151.9, is amended to read as follows:

Section 1151.9. A. Any administrative or governing body with authority to enter into public contracts shall require individual roofing contractor registration with appropriate endorsement for purposes of such persons submitting or entering into any bid or contract involving roofing contractor work.

B. The Roofing Contractor Registration Act does not apply to:

1. An actual owner of residential or farm property who physically performs, or has family member, employee or employees who perform with or without remuneration, roofing services including, construction, installation, renovation, repair, maintenance, alteration, waterproofing, or removal of materials or structures on property owned by such person;

2. Any authorized employee, representative or representatives of the United States Government, the State of Oklahoma, or any county, municipality, or other political subdivision of this state performing maintenance on his or her own facilities which does not violate manufacturer specifications nor compromise health or safety standards and practices;

3. Any person who furnishes any fabricated or finished product, material, or article of merchandise which is not incorporated into or attached to real property by such person so as to become affixed thereto;

4. Any person including churches or other charitable entities that provide roof repairs or replacements at no charge using volunteer labor;

5. Any employee of a registrant who does not hold himself or herself out for hire, advertise, or engage in contracting, except as an employee of a registrant;

6. Licensed engineers, licensed architects, licensed HVAC and any other person licensed by the jurisdiction, operating under the purview and within the scope of their respective license;

7. A person who only furnishes roofing materials, roofing supplies or equipment and does not, nor do the person's employees, install or fabricate them into or consume them in the performance of the work of the roofing contractor;

8. Prime contractors, general contractors, property managers and project managers who bid on construction trade work in areas additional to roofing contractor work, and subcontract the roofing contractor work as long as they subcontract the roofing work to a currently registered and properly endorsed roofing contractor who is in good standing; if the bid is solely for roofing contractor work, then a registration ~~is required~~ and endorsement are required as set forth in this act;

9. Owners of commercial properties including residential rental properties consisting of four dwelling units or less, when acting as their own roofing contractor and providing all material supervision themselves, lessees of residential properties with the consent of the owner, who, whether themselves or with their own employees, perform roofing construction in or upon the properties, all installing roofing materials according to the International Building Code, as adopted by the Oklahoma Uniform Building Code Commission, or the manufacturer's installation instructions;

10. Owners of property when acting as their own roofing contractor, providing all material supervision themselves, and installing roofing materials according to the International

Residential Code, as adopted by the Oklahoma Uniform Building Code Commission, or the manufacturer's installation instructions when building or improving a single-family dwelling residence on such property for the occupancy of such owners and not intended for sale or rent. In any action brought under the Roofing Contractor Registration Act, proof of the sale or offering for sale of such structure or the renting or offering to rent of such structure by the owners of the property within one (1) year after substantial completion of the structure when the structure can be occupied and used as intended but punch list items may remain, is presumptive evidence that the construction was undertaken with the intent of sale or rent; or

11. Metal building erectors who install prefabricated- or pre-engineered-metal-building packages, known as PEMBs, as defined by the Construction Science Institute and Construction Specifications Institute in Division 13, Special Construction: Metal Building Systems.

C. Labor-only crews providing labor only and working directly for a registered roofing contractor that possesses a proper current roofer endorsement in good standing and is under the direct supervision of that endorsed roofer qualifying party performing the installation of asphalt shingles, tile shingles, synthetic shakes or wood shakes or other comparable materials to a sloped roof and to complete roofing work and does not provide any materials must be registered but are not required to have ~~a commercial~~ an endorsement.

SECTION 9. AMENDATORY 59 O.S. 2021, Section 1151.10, as amended by Section 3, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1151.10), is amended to read as follows:

Section 1151.10. A. Within twenty-five (25) calendar days from the date of application, the registrar shall either issue or deny the roofing contractor registration. No registration shall be issued to a qualifying party until the registrar receives all documentation and fees necessary to obtain a registration certificate in good standing. The registration certificate issued on an original application entitles the person to act as a roofing contractor within this state, subject to the limitations of the Roofing Contractor Registration Act. ~~Until January 1, 2015, all registrations shall expire on June 30 of each year and may be renewed from year to year.~~ Beginning no later than January 1, 2015, all registrations issued shall be renewed based on staggered expiration dates of the last day of the birth month of the

qualifying party so that all registrations and endorsements shall expire on the last day in the birth month of the qualifying party. The Construction Industries Board is authorized to prorate registration and renewal fees, as described by rule, ~~so that beginning January 1, 2015, or thirty (30) days after rules have been approved, fees for renewals previously due by June 30, 2015, are prorated and converted to be due the last day of the birth month of the qualifying party by shortening or lengthening the next renewal date by up to six (6) months. Beginning November 1, 2014, new initial registrations and endorsements will be issued for up to eighteen (18) months and due for renewal the last day of the birth month of the qualifying party.~~ After initial proration or conversion to birth month, no subsequent registration or endorsement shall be issued for longer than one (1) year and all endorsements shall expire on the last day in the birth month of the qualifying party. The Construction Industries Board shall implement rules for the scheduling of expiration and renewal of registrations and endorsements, including the prorating of fees and the identification and information of the qualifying party. The commercial or residential roofer endorsement shall expire on the expiration date of the supporting registration.

~~B. An applicant or qualifying party whose registration or endorsement is refused or denied by the registrar may obtain a hearing before the Committee of Roofing Examiners with written notice to the registrar of the grounds for appeal and identification of evidence to be presented in support of the application requirements and any other information showing the applicant's ability and willingness to comply with the requirements of the act, and to protect the public health, safety and welfare. Such appeals to the Committee of Roofing Examiners shall be made by the qualifying party in writing to the registrar within fourteen (14) days from the date of the written notification of denial or refusal to register or endorse.~~

~~C.~~ The Construction Industries Board shall issue a commercial or residential roofer endorsement to any person who:

1. Has been ~~certified~~ approved by the Committee of Roofing Examiners or the registrar as having successfully passed the appropriate examination; and

2. Has paid the application and endorsement fee and has otherwise complied with all of the provisions of the commercial or residential roofer endorsement of the Roofing Contractor

Registration Act. The endorsement fee is hereby established as up to Two Hundred Dollars (\$200.00). Renewal of a commercial or residential roofer endorsement shall be One Hundred Dollars (\$100.00).

Endorsements renewed more than thirty (30) days following the date of expiration may only be renewed upon application and payment of the required fees and payment of a late renewal fee in the amount of One Hundred Dollars (\$100.00).

No endorsement shall be renewed unless the licensee has completed the required hours of continuing education recommended by the Committee and set forth by rule.

No late fee shall be charged to renew a registration or endorsement which expired while the applicant was in active military service, if application for renewal is made within one (1) year of discharge from active duty status.

SECTION 10. AMENDATORY 59 O.S. 2021, Section 1151.11, is amended to read as follows:

Section 1151.11. Not later than ten (10) days after the date of a change in a roofing contractor's name, address, or legal service agent, or upon a registered roofing contractor ceasing business as a roofing contractor, the person shall notify the registrar of the change on a form provided by the registrar. A name, address, or legal service agent change shall be accompanied by a fee not exceeding Twenty-five Dollars (\$25.00) to be set by the registrar. A person may not change his or her name under an active registration certificate if the change is associated with a change in the legal status of the business entity other than a change in marital status. Doing business under a new business name or a change in legal status of a business requires issuance of a new registration certificate. ~~When a registered roofing contractor ceases to be active as a roofing contractor, the registrar shall suspend the registration certificate of such contractor.~~

SECTION 11. AMENDATORY 59 O.S. 2021, Section 1151.12, is amended to read as follows:

Section 1151.12. A. Any roofing contractor registration certificate issued under the Roofing Contractor Registration Act may be renewed for each successive year by obtaining from the registrar a certificate of renewal. To obtain a certificate of renewal, the

qualifying party shall file with the registrar a renewal application by the last day of the birth month of the qualifying party each successive year, provide any qualifying party information required under the Roofing Contractor Registration Act, Section 1151.5 of this title, not previously provided by the applicant, if any, and pay the renewal fee. The application for renewal shall require statements under oath that the qualifying party and legal entity have properly submitted income and employment taxes due in this state; whether or not the qualifying party has been adjudicated by a court of competent jurisdiction for any violation of the Roofing Contractor Registration Act or any act or omission specified in ~~subsection A of~~ Section 1151.14 of this title. The registrar may forward a copy of any information in an application for renewal to the Oklahoma Tax Commission and any other state agency.

B. The qualifying party shall include with the renewal application a copy of the certificate of liability insurance, unless the registrar has a current valid certificate of insurance on file, proof of workers' compensation coverage, unless exempt under the Workers' Compensation Act, and, if applicable, a copy of the current registration certificate required by law for roofing contractors. The renewal application shall be notarized.

C. The registrar shall refuse to renew a roofing contractor's registration certificate for any reason stated in ~~subsection B of~~ Section 1151.5 of this title or for failing to provide any qualifying party information required under the Roofing Contractor Registration Act not previously provided by the applicant. The registrar shall notify the applicant in writing if the registrar denies the renewal as provided in ~~subsection C of~~ Section 1151.5 of this title.

D. If any roofing contractor fails to ~~file a renewal application~~ renew by the deadline of the last day of the birth month of the qualifying party, that contractor's registration shall be ~~not in good standing~~ expired. ~~A~~ An expired roofing contractor has a thirty-day grace period on fees after the last day of the birth month of the qualifying party to renew the registration certificate without a late fee. The late fee shall be One Hundred Dollars (\$100.00). ~~A roofing contractor registration certificate not renewed within sixty (60) days of the last day of the birth month of the qualifying party shall be suspended for failure to renew, and if a roofing contractor's registration certificate still has not been renewed within six (6) months of expiration, it shall be revoked for failure to renew.~~

E. 1. A roofing contractor desiring to renew a registration certificate that has been suspended for any cause provided in this act shall be assessed a fee equal to twice the amount of the fee established by ~~subsection D of~~ Section 1151.8 of this title.

2. The registrar shall assess a reinstatement fee not exceeding Three Hundred Dollars (\$300.00) to be set by the registrar plus the fee established by Section 1151.8 of this title for any registration that has been revoked for any cause provided in the Roofing Contractor Registration Act.

3. A roofing contractor submitting an application for registration after suspension or revocation of that contractor's registration certificate must be otherwise eligible for registration under the Roofing Contractor Registration Act.

F. The registrar shall include a registration status notation in a roofing contractor's record if the status of registration changes from an active and valid registration to not in good standing, expired, denied, suspended or revoked.

SECTION 12. AMENDATORY 59 O.S. 2021, Section 1151.14, is amended to read as follows:

Section 1151.14. A. Any person may file a written duly verified complaint with the registrar alleging that a person has committed any of the following acts or omissions:

1. Abandonment of a roofing contract without legal excuse after a deposit of money or other consideration has been paid;

2. Diversion of funds or property entrusted to a roofing contractor;

3. Engaging in any fraudulent or deceptive acts or practices or misrepresentation of products, services or qualifications as a roofing contractor;

4. Making a false or misleading statement in an application for roofing contractor registration, endorsement, or renewal application or in soliciting a contract for roofing services;

5. Adjudication against the roofing contractor by a court of competent jurisdiction for a violation of the provisions of the

Roofing Contractor Registration Act, or a license or registration or endorsement suspended, revoked or other discipline imposed by any other professional regulatory board in this or any other jurisdiction;

6. Engaging in or offering to engage in work without a valid registration and commercial or residential roofer endorsement as required for roofing contractors pursuant to the Roofing Contractor Registration Act or performing roofing services during any period when the roofing contractor's registration is denied, not in good standing, expired, suspended or revoked;

7. Engaging in or offering to engage in roofing services without obtaining a proper permit as may be required by any state or local authority;

8. Failure to comply with any tax laws authorized by the state or any of its political subdivisions;

9. Damaging or injuring persons or property while performing roofing services under a valid roofing contractor registration for which the roofing contractor's liability insurance or ~~workers~~ workers' compensation coverage was inadequate;

10. Failure to display the roofing firm name, existence of any commercial or residential roofer endorsement, if any, and the roofing contractor registration number on all vehicles used to transport materials and tools in the operation of the business in letters and numerals at least two (2) inches in height in a conspicuous location on both sides of each vehicle in contrasting color to the background color;

11. Failure to post in a conspicuous place on each job site the name, existence of any commercial or residential roofer endorsement, registration number, and telephone number for the registration under which any work is being performed;

12. Engaging in or offering to engage in roofing contractor work using a roofing registration number of another registrant, ~~whether the registration is or is not in good standing~~;

13. Advertising, either directly or through another, for roofing contractor work without a valid, continuing registration and endorsement, or without displaying registration number and

endorsement information on advertisement, including but not limited to contracts and signage on vehicles;

14. Soliciting roofing contractor work through contracts obtained by salespersons not under the direct supervision and employment of a registered and endorsed roofing contractor when such contract is then sold for remuneration or something of value and consists of a pattern of conduct that can be shown to be a business practice in a secondary market of sales of contracts for profit;

15. Gross defects in workmanship in a roofing contractor project that risks serious harm or injury to a person, or unjustly causes monetary damages in excess of Five Thousand Dollars (\$5,000.00); or

16. Failure to comply with a specified provision of the Roofing Contractor Registration Act.

B. The complaint shall be on a form approved by the registrar and shall set forth the alleged act or omission stated in subsection A of this section, and a statement of sufficient facts upon which a reasonable person could conclude that the act or omission specified in subsection A of this section has been committed. All complaints filed with the registrar shall be open to public inspection. Nothing in this section shall be construed to require the complainant to first file a complaint with the registrar before seeking relief or remedies allowed by law.

C. A complaint received by the registrar as provided in this section may be ~~retained by the Board for~~ subject to investigation, citation, and hearing before the Roofing Hearing Board ~~or, in the Board's discretion, the complaint may be referred to the district attorney for appropriate disposition as determined by the district attorney, in his or her discretion.~~

SECTION 13. AMENDATORY 59 O.S. 2021, Section 1151.15, as amended by Section 1, Chapter 200, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1151.15), is amended to read as follows:

Section 1151.15. A. The ~~Roofing Hearing Board~~ registrar is authorized to investigate any written complaint received pursuant to the Roofing Contractor Registration Act, including any person to the extent necessary to determine if the person is engaged in violations of the provisions of the Roofing Contractor Registration Act, including unlawful activity of the practice of contracting for

roofing work without a valid registration, ~~whether the matter is prosecuted administratively through the Roofing Hearing Board or referred for criminal prosecution and endorsement~~. The ~~Board~~ registrar may refer the matter for prosecution whether or not the person ceases the unlawful practice of contracting for roofing work without a valid registration and endorsement.

B. Service of the notice of violation or citation may be in person or by certified mail at the last-known business address or residence address of the person cited.

C. A notice of violation and citation may contain a cease and desist order for residential roofing contractor work if the homeowner has been provided the required disclosure and has exercised the homeowner's option to cancel the contract as provided in subsection I of Section 1151.5 of this title, or at any time during commercial roofing contractor work.

D. The registrar shall read each complaint received and shall record the date that the verified complaint was received and process the complaint as provided by law. The registrar shall notify the roofing contractor against whom the complaint is made, in writing, within five (5) days of the receipt of the written complaint. The roofing contractor shall have ten (10) days to respond, in writing, to the registrar. If a response to the complaint is received by the registrar, whether admitting or denying the basis of the complaint, a copy of both the complaint and the response shall be sent to the district attorney along with the results of any investigation by the ~~Board~~ registrar, if the ~~Board does not retain the matter and~~ registrar refers the complaint to the district attorney. If no response is received, the complaint may still be referred to the district attorney, along with the results of any investigation by the ~~Board~~ registrar. The ~~Board~~ registrar or a Committee of Roofing Examiners member is authorized to assist in any investigation of a roofing complaint referred to the district attorney, if requested by the district attorney.

E. Following referral of a complaint to the district attorney, if the roofing contractor is adjudicated by the court for an act or omission specified in subsection A of Section 1151.14 of this title, or upon a conviction for any violation of the provisions of the Roofing Contractor Registration Act, the registrar, when ordered by the court, shall suspend, revoke or deny the roofing contractor's registration and any endorsement for the period of time specified by the court, and if the court orders the registration suspended,

revoked or denied, and yet fails to set the term of such suspension, revocation or denial, the period shall be six (6) months.

F. The registrar shall not renew, reinstate, or issue a new roofing contractor registration or endorsement to any person subject to any term of denial, suspension or revocation until such term has been completed, and thereafter, the person makes application and pays required fees pursuant to Sections 1151.8 and 1151.12 of this title.

G. It shall be unlawful for a person to obtain or attempt to obtain a roofing contractor registration certificate under any other name during any period when the roofing contractor's registration is not in good standing, expired, suspended or revoked. Upon conviction of a violation of this subsection, the person shall be guilty of a misdemeanor as provided in Section 1151.3 of this title. A business firm, partnership, association, corporation, limited liability company, or other group or combination thereof acting as a unit whose registration certificate is not in good standing, expired, suspended or revoked includes all of the members, partners, officers, and agents acting under that roofing contractor registration certificate when such persons are specified on and did sign the application or renewal form.

SECTION 14. AMENDATORY 59 O.S. 2021, Section 1151.17, is amended to read as follows:

Section 1151.17. A. When applying for any permit required by the state or any of its political subdivisions for roofing services or jobs, a roofing contractor shall supply the permit-issuing official that roofing contractor's registration certificate number issued pursuant to the Roofing Contractor Registration Act and endorsement information. That official shall enter a roofing contractor's registration number and endorsement information on the permit. The registrar may investigate any roofing project for purposes of verifying roofing contractor registration, endorsement, or permit verification.

B. A person performing as a roofing contractor on his or her own property, although exempt from the registration requirements of the Roofing Contractor Registration Act, shall, when applying for a permit required for the project, supply the permit-issuing official any roofing contractor registration number and endorsement information, as soon as available, of each roofing subcontractor engaged in roofing services and doing work covered by the permit, if

any. That official shall enter each roofing contractor registration number and endorsement information so supplied before inspection of the job.

C. A roofing contractor shall display his or her roofing contractor registration number issued and endorsement information pursuant to the Roofing Contractor Registration Act on every business sign, card, correspondence, and contract used to solicit and conduct roofing services in this state and shall display the roofing firm name, existence of any commercial or residential roofer endorsement, and the roofing contractor registration number bearing the initials "OK" preceding that registration number issued by the registrar on all vehicles used to transport materials in the operation of the business. Such names, endorsements, and numbers shall be printed in letters and numerals at least two (2) inches in height in a conspicuous location on both sides of each vehicle in contrasting color to the background color.

D. Each actively endorsed registrant who has contracted directly with a prime contractor or owner shall post in a conspicuous place on each job site the name, existence of any commercial or residential roofer endorsement, registration number, and telephone number for the registration under which any work is being performed, and on all media containing the registrant's name, including but not limited to magnetic signs on vehicles, business cards, contracts, bids, letterhead, signs, and advertisements. The prime contractor or registered and endorsed roofing contractor, if no prime contractor, remains responsible under the Roofing Contractor Registration Act for required registration and endorsement compliance when subcontracting the roofing work as is every subcontractor when subcontracting roofing work. Subcontracting to an unregistered roofing contractor is a violation of this act. Subcontracting to an unendorsed or improperly endorsed roofing contractor when an active endorsement is required is a violation of this act. It is the responsibility of the prime contractor, all contractors, and all subcontractors to comply with this act and to provide proof on the jobsite to the registrar of the current registration and active endorsement of the qualifying party providing the required direct supervision. Failure to provide proof to the registrar on the jobsite of the active current and properly endorsed qualifying party directly supervising the job is a violation of the Roofing Contractor Registration Act, for which enforcement action may be taken on each person performing roofing work on the jobsite and each subcontractor up to and including the contractor contracting directly with the owner.

SECTION 15. AMENDATORY 59 O.S. 2021, Section 1151.18, as amended by Section 2, Chapter 200, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1151.18), is amended to read as follows:

Section 1151.18. Upon request, the registrar shall verify a roofing contractor registration number and endorsement information to city, county and state enforcement officials and to the public. The registrar shall establish through the Internet or other technology a verification system or direct access system for confirming roofing contractor registration certificates ~~and~~ status of registration, and endorsement information maintained by the Construction Industries Board. Disclosure of any information through use of the roofing contractor registration system or information maintained by the registrar shall not be deemed to be an endorsement of any roofing contractor or determination of any facts, qualifications, information or reputation of any roofing contractor by the registrar, the state, the Construction Industries Board, or any of their respective agents, officers, employees or assigns.

SECTION 16. AMENDATORY 59 O.S. 2021, Section 1151.22, is amended to read as follows:

Section 1151.22. A. Any contract entered into under the Roofing Contractor Registration Act shall include a statement that all individuals performing work under the contract are covered by workers' compensation insurance.

B. If an affidavit of exemption for workers' compensation insurance is used by a legitimately exempt person, it shall be attached to the contract and it shall be used only for residential construction projects. All commercial projects shall require all individuals performing work on such project to be covered by workers' compensation insurance as employees of the person registered under the Roofing Contractor Registration Act. However, any day laborer under the required direct supervision of a qualifying party who can show proof of being covered by workers' compensation insurance under the temporary labor agency for whom he or she is hired-out may provide an affidavit from the temporary labor agency to meet the requirement of this section for authority to use an affidavit of exemption. No roofing contractor required to be registered under the Roofing Contractor Registration Act shall hire any out-of-state company or person or use any person or independent contractor that is not registered under the Roofing Contractor Registration Act with the required workers' compensation

insurance or who is not deemed his or her employee for purposes of workers' compensation insurance.

C. In no event shall a homeowner be held liable in the workers' compensation administrative system for injury or death to any person who performs work under a contract with a person required by law to be registered under the Roofing Contractor Registration Act and have workers' compensation insurance on all persons performing work on the roofing project.

SECTION 17. AMENDATORY 59 O.S. 2021, Section 1151.25, is amended to read as follows:

Section 1151.25. A. Except as otherwise provided in the Roofing Contractor Registration Act, on and after July 1, 2015, every roofing contractor offering to engage in or engaging in performing commercial roofing contractor work in this state shall be required to take and successfully pass a commercial roofing examination approved under the provisions of ~~this act~~ the Roofing Contractor Registration Act, and be in compliance with all other provisions of the act and rules thereof before acting or being endorsed as a commercial roofing contractor.

B. Examinations for a commercial roofer endorsement shall be uniform and practical in nature and sufficiently strict to test the qualifications and fitness of the applicants for endorsement. Examinations shall be in whole or in part in writing. Examinations shall be offered at least monthly; dates, times and locations are to be determined by the registrar or third-party vendor with approval of the registrar.

C. Any applicant initially failing to pass the examination shall not be permitted to take another examination for a period of thirty (30) days. Any applicant subsequently failing to pass the examination shall not be permitted to take another examination for a period of ninety (90) days. However, in a declared state of emergency, the examination shall be available as often as possible as determined by the registrar.

D. No commercial roofer endorsement shall be renewed unless the qualifying party has completed the required hours of continuing education, as determined and approved by the Committee of Roofing Examiners ~~and the Construction Industries Board~~. Effective January 1, 2027, four (4) hours of continuing education is required annually. The continuing education course, provider, and instructor

shall be approved by the Committee of Roofing Examiners, in advance unless otherwise allowed by the Roofing Registration Industry Regulations. The continuing education material shall cover the codes as adopted by the Oklahoma Uniform Building Code Commission (OUBCC) or the Oklahoma laws for the roofing industry regulations in combination with topics including but not limited to:

1. Manufacturers' installation of materials or equipment;

2. Roofing safety; and

3. Fall protection and other trade subject matters designed to update knowledge and improve commercial roofing contracting knowledge and skills appropriate for topics of continuing education and approved by the Committee.

E. Inactive endorsees in good standing, having met registration and commercial endorsement examination requirements, and maintaining continuing education and renewal fee requirements may have a current endorsement in an inactive status when endorsees do not meet the qualifications for active endorsement for the roofing firm and are not the qualifying party for the firm. The inactive endorsee may not act as the designated qualifying party for a roofing firm until first becoming an active endorsee by submitting an application, meeting all qualifications, and receiving an active endorsement.

SECTION 18. AMENDATORY Section 4, Chapter 368, O.S.L. 2025 (59 O.S. Supp. 2025, Section 1151.25a), is amended to read as follows:

Section 1151.25a. A. Except as otherwise provided in the Roofing Contractor Registration Act, ~~on and after the effective date of this act~~ beginning January 1, 2027, every roofing contractor, ~~except for those defined in subsection C of this section, labor-only crews as defined in this act~~ offering to engage in or engaging in performing residential roofing contractor work in this state shall be required to receive a residential ~~roofing~~ roofer endorsement. To receive a residential ~~roofing~~ roofer endorsement, the roofing contractor shall be required to take and successfully pass a residential roofing examination approved under the provisions of this act with a minimum score of seventy percent (70%), and be in compliance with all other provisions of this act and rules before acting or being endorsed as a residential roofing contractor. For applicants who have been registered and in good standing with the Construction Industries Board ~~on the effective date of this act~~ on

January 1, 2027, there shall be a twelve-month grandfathering-in period from ~~the effective date of this act~~ January 1, 2027, to January 1, 2028, to either pass the exam or complete an additional ten (10) hours of continuing education credits approved in advance by the Committee of Roofing Examiners to be granted a residential roofer endorsement. Any applicant who has been registered, is in good standing with the Board, and possesses a current commercial roofer endorsement ~~on the effective date of this act~~ on January 1, 2027, shall be exempt from the residential roofing examination and additional ten (10) hours of continuing education credits required to receive a residential ~~roofing~~ roofer endorsement within the twelve-month grandfathering-in period.

B. Examinations for a residential roofer endorsement shall be uniform and practical in nature and sufficiently strict to test the qualifications and fitness of the applicants for endorsement. Examinations shall be in whole or in part in writing. Examinations shall be offered at least monthly; dates, times, and locations shall be determined by the registrar or third-party vendor with approval of the registrar.

C. Any applicant initially failing to pass the examination shall not be permitted to take another examination for a period of thirty (30) days. Any applicant subsequently failing to pass the examination shall not be permitted to take another examination for a period of ninety (90) days. However, in a declared state of emergency, the examination shall be available as often as possible as determined by the registrar.

D. No residential roofer endorsement shall be renewed unless the qualifying party has completed the required hours of continuing education ~~pursuant to subsection A of this section,~~ as determined and approved by the Committee of Roofing Examiners. Effective January 1, 2027, four (4) hours of continuing education is required annually. The continuing education course, provider, and instructor shall be approved by the Committee of Roofing Examiners, in advance unless otherwise allowed by the Roofing Registration Industry Regulations. The continuing education material shall cover the codes as adopted by the Oklahoma Uniform Building Code Commission (OUBCC) or the Oklahoma laws for the Oklahoma roofing industry regulations in combination with topics, including but not limited to:

1. Manufacturers' installation of materials or equipment;

2. Roofing safety; and

3. Fall protection, and other trade subject matters designed to update knowledge and improve residential roofing contracting knowledge and skills appropriate for topics of continuing education and approved by the Committee.

E. For all new applicants not registered and in good standing with the Construction Industries Board prior to ~~the effective date of this act~~ January 1, 2027, the Construction Industries Board shall issue a residential roofer endorsement to qualifying applicants no sooner than thirty (30) days from the date of successful completion of the exam. New applicants shall not be allowed to sell, offer, bid, inspect, or perform any residential roofing contractor work in this state until a residential roofer endorsement is issued.

F. For all applicants registered and in good standing with the Construction Industries Board prior to ~~the effective date of this act~~ January 1, 2027:

1. The residential roofer endorsement shall be issued immediately upon compliance with the provisions of this section; and

2. Applicants shall be allowed to continue residential roofing contractor work at all times during the residential roofer endorsement application process, until January 1, 2027, when all applicants must have a valid residential roofer endorsement to perform residential roofing work unless otherwise exempted under this act.

~~G. The residential roofing endorsement shall not apply to roofing labor contractors who:~~

~~1. Only provide roofing construction labor services;~~

~~2. Are working directly for a registered roofing contractor that possesses a residential roofing endorsement; and~~

~~3. Are not providing any materials~~

Inactive endorsees in good standing, having met registration and residential endorsement exam requirements, and maintaining continuing education and renewal fee requirements may have a current endorsement in an inactive status when endorsees do not meet the qualifications for active endorsement for the roofing firm and are

not the qualifying party for the firm. The inactive endorsee shall not act as the designated qualifying party for a roofing firm until first becoming an active endorsee by submitting an application, meeting all qualifications, and receiving an active endorsement.

SECTION 19. AMENDATORY 59 O.S. 2021, Section 1151.26, is amended to read as follows:

Section 1151.26. A. There is hereby established the Committee of Roofing Examiners, which shall consist of seven (7) members. All members shall be legal residents of the United States and shall be residents of this state. Members shall hold office for terms of two (2) years or until their successors have been appointed and qualified.

B. Members of the Committee shall be appointed as follows:

1. One member shall be appointed by the Governor and shall be a licensed architect with a minimum of five (5) years' experience in commercial roof design. This member shall be selected from a list of at least three qualified and eligible architects submitted by a state organization representing architects;

2. One member shall be appointed by the Governor and shall be a licensed engineer with a minimum of five (5) years' experience in commercial roof design. This member shall be selected from a list of at least three qualified and eligible engineers submitted by a state organization representing engineers;

3. Two members shall be appointed by the President Pro Tempore of the Oklahoma State Senate and shall be registered roofing contractors with a valid commercial roofer endorsement, except for the initial appointees who shall be otherwise qualified to hold a commercial roofer endorsement, each who work primarily in commercial roofing contractor work with a minimum of five (5) years' actual job experience in commercial roofing contractor work in this state and who are registered pursuant to the Roofing Contractor Registration Act, and otherwise meet all requirements for endorsement in this act;

4. Two members shall be appointed by the Speaker of the Oklahoma House of Representatives and shall be registered roofing contractors and timely hold a residential roofer endorsement, each who work primarily in residential roofing contractor work with a minimum of five (5) years' actual job experience in residential

roofing contractor work in this state and who are registered pursuant to the Roofing Contractor Registration Act, and otherwise meet all requirements for endorsement in this act; and

5. One member shall be appointed by the Construction Industries Board and shall be a licensed or certified building and construction inspector who is a member of a statewide organization representing certified building inspectors with a minimum of five (5) years' actual job experience in building code inspections. This member shall be selected from a list of at least three qualified and eligible inspectors submitted by a state organization representing inspectors.

C. Any vacancy on the Committee shall be filled for the unexpired term as soon as possible in the manner in which that position was originally filled. Members shall continue in office until a successor is appointed by the appointing authority. The appointing authority shall fill all vacancies and unexpired terms in the same manner as the original appointment of the member whose position is to be filled. Such members may be removed by the appointing authority at any time.

D. A majority of the Committee shall constitute a quorum for the transaction of business, and the Committee shall elect a chair from its number. Each member shall receive reimbursement for travel expenses in accordance with the provisions of the State Travel Reimbursement Act. The Committee shall meet at least quarterly, and special meetings may be called by the Committee chair or the Board.

SECTION 20. AMENDATORY 59 O.S. 2021, Section 1151.27, is amended to read as follows:

Section 1151.27. The Committee of Roofing Examiners shall:

1. Assist and advise the Construction Industries Board on all matters relating to the formation of rules and standards in accordance with the provisions of the Roofing Contractor Registration Act and the provisions of the commercial and residential roofer ~~endorsement~~ endorsements of the Roofing Contractor Registration Act;

2. Assist and advise the Board in prescribing and adopting forms for registration and endorsement applications;

3. Assist and advise the Board on the examinations for applicants for a commercial or residential roofer endorsement of the Roofing Contractor Registration Act and rules thereof, and on all matters relating to the commercial and residential roofer endorsement provisions of the Roofing Contractor Registration Act;

4. Assist and advise the Board on establishment of standards and procedures for continuing education requirements for a commercial or residential roofer endorsement and procedures for all matters pertaining to the formation of rules;

5. Approve applications for continuing education classes or credits for a commercial or residential roofer endorsement, and assist and advise the Board on establishment of standards and procedures for the approval of continuing education provider applications;

6. In its discretion, issue an advisory opinion to any registrant, governmental official or entity substantially affected by a rule or statute enforceable by the Board;

~~7. Hear requests for reconsideration of registration and endorsement applications denied or refused by the registrar;~~

~~8.~~ When deemed necessary by the Committee, appoint a member of the Committee to assist in investigating an alleged violation of the provisions of the Roofing Contractor Registration Act and of any rules promulgated pursuant thereto. Such member then would be disqualified from participation as a Roofing Hearing Board member in the same matter brought before the Roofing Hearing Board for adjudication;

~~9.~~ 8. Develop the requirements for issuance of a registration and endorsement by reciprocity to an applicant who is currently licensed or registered to engage in roofing contractor work in another state for recommendation to the Board for its rulemaking process;

~~10.~~ 9. Recommend to the Board that the Board enter into a written reciprocity agreement with another state if the requirements for registration and endorsement in the other state are deemed by the Committee to be substantially the same or equivalent to the requirements for obtaining an original registration and endorsement in force in this state at the date of such registration and:

- a. that one (1) year immediately prior to the date of payment of the required fee the applicant lawfully engaged in roofing contractor work within and under the laws of the state pursuant to a license or registration issued thereby authorizing such roofing work,
- b. that no disciplinary matters are pending against the applicant in any city, state, country, territory or province, and relating to the roofing trade in which the applicant seeks reciprocity,
- c. that the registration being reciprocated was obtained by equivalent or substantially the same requirements in the state wherein it was issued,
- d. that there is a written agreement between the states with equivalent or substantially similar registration and endorsement requirements, and
- e. that the applicant meets all other requirements of the Construction Industries Board Act, including payment of the applicable license fee;

~~11.~~ 10. Have such other powers and duties as are necessary to implement the commercial and residential roofer ~~endorsement~~ endorsements of the Roofing Contractor Registration Act; and

~~12.~~ 11. Assist and advise the Board in such other matters as requested thereby.

SECTION 21. AMENDATORY 59 O.S. 2021, Section 1151.28, is amended to read as follows:

Section 1151.28. A. The designee of the Construction Industries Board, as chair, and the Committee of Roofing Examiners shall act as the Roofing Hearing Board and shall comply with the provisions of the Construction Industries Board Act, rules and Article II of the Administrative Procedures Act.

B. Any administrative hearing on suspensions, revocations or fines shall be conducted by a hearing examiner appointed by the Construction Industries Board. The hearing examiner's decision shall be a final decision which may be appealed to a district court

in accordance with the Administrative Procedures Act and the Construction Industries Board Act and rules and regulations.

C. The Roofing Hearing Board may, upon its own motion, and shall, upon written complaint filed by any person, investigate and conduct hearings on the business transactions of any roofing contractor, firm or any person soliciting or engaging in roofing contractor work.

D. The Roofing Hearing Board may conduct hearings on citations issued to any person pursuant to the Roofing Contractor Registration Act, applications for suspension and revocation of a registration or endorsement.

E. The Construction Industries Board shall suspend or revoke or may refuse to issue or renew any license or registration under the commercial or residential roofer endorsement provisions of the Roofing Contractor Registration Act for any of the following standards of the Roofing Contractor Registration Act:

1. Making a material misstatement in the application for an registration, endorsement, or the renewal of an endorsement;

2. Obtaining any registration or endorsement by false or fraudulent representation;

3. Loaning or allowing the use of such registration or endorsement by any other person or illegally using a registration or an endorsement;

4. Demonstrating incompetence to act as a commercial or residential roofing contractor or labor-only crew;

5. Violating any provisions of the Roofing Contractor Registration Act, or any rule or order prescribed by the Construction Industries Board pursuant to the provisions of the Roofing Contractor Registration Act; or

6. Willfully failing to perform normal business obligations without justifiable cause.

F. Any person whose endorsement or registration has been revoked by the Roofing Hearing Board may apply for a new license one (1) year from the date of such revocation.

SECTION 22. REPEALER Section 5, Chapter 368, O.S.L.
2025, is hereby repealed.

SECTION 23. This act shall become effective January 1, 2027.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 4th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____